

Procedure section 425.13 still applies and Plaintiff was required to request an order from the court to claim punitive damages. Accordingly, the motion to strike the last sentence of paragraph 29, the entirety of paragraphs 47, 59, and 81, and the sixth prayer for relief is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 08/17/26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Navarro v. Castaneda et al.**
Superior Court Case No. 25CECG02850

Hearing Date: August 18, 2026 (Dept. 501)

Motion: Petition to Compromise Minor's Claim

Tentative Ruling:

To deny without prejudice. Petitioner Victoria Navarro must file a new petition, with appropriate supporting papers and proposed orders, and obtain a new hearing date for consideration of an amended petition. In the event that oral argument is requested, both petitioner Victoria Navarro and claimant Kyra Castillo are excused from appearing.

Explanation:

Item 12 reports medical expenses. The petition reports \$1,428 to be paid to Yano Chiropractic. Evidence shows that the amount billed was \$2,040. No evidence was submitted in support to suggest that Yano Chiropractic will accept less than what it billed in full satisfaction.

Item 13 seeks attorney's fees. The declaration submitted in support fails to address the applicable factors of California Rules of Court, rule 7.955(b) as directed in the application instructions. (Cal. Rules of Ct., rule 7.955(c) ["A petition requesting court approval and allowance of an attorney's fee... must include a declaration from the attorney that addresses the factors listed in (b) that are applicable to the matter before the court."])

Item 18 seeks a disposition to an estate. The probate action that would estate of a guardianship or conservatorship was identified as the present matter. This matter is not an action in probate. Petitioner Victoria Navarro ("Petitioner") fails to identify the guardianship or conservatorship in which Petitioner now seeks to disburse the proceeds. Rather, Attachment 18(a)(1) appears to seek disbursement directly to a parent. Item 18(b)(5) of the petition is not checked. Neither is the amount of net settlement under the statutory limit of \$5,000. The implied disposition to a parent is therefore also inappropriate.

For the above reasons, the petition is denied, without prejudice.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

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